

BILLMAN, et al v HARMON

23CV47101

PLAINTIFFS' MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

This action arises out of a dispute between Jamie Billman and Myrna Ray Reynolds, LLC ("Plaintiffs") and Krystal Harmon ("Defendant"), regarding the title and ownership of the real property located at 3968 S. Burson Road, Valley Springs, CA 95252 ("Property").

Plaintiffs filed their complaint on December 6, 2023, and are now before the Court seeking leave to file a First Amended Complaint ("FAC") to allege new acts and omissions on the part of Defendant. Defendant has not filed an opposition.

"The court may, in furtherance of justice, and on such terms as may be proper, allow a party to amend any pleading ..." (Code Civ. Proc., § 473, subd. (a)(1).) The court's discretion will usually be exercised liberally to permit amendment of the pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified:

If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Sup.Ct.* (1959) 172 Cal.App.2d 527, 530.)

At this stage, the Defendants would not be prejudiced by allowing the amendment sought since a trial has not yet been set and the FAC adds new facts and theories arising out of the same circumstances as the original complaint.

Based on the foregoing, the Court **GRANTS** the Motion. Plaintiff shall have 10 days' leave to file a first amended complaint.

The Clerk shall provide notice of the Ruling forthwith. No further formal Order is required.

RIGUERO v MENDEZ, et al

23CV46995

PLAINTIFFS' MOTION TO COMPEL DISCOVERY RESPONSES AND DEEM MATTERS ADMITTED

This civil action stems from a dispute over the estate of Rachel Gloria Menedez ("Decedent"). Before the Court is Plaintiff's motion seeking to have the Court: 1) deem admitted the truth of facts in the Request for Admissions ("RFA"), 2) compel responses to form interrogatories, 3) compel answers to Requests for Production of Documents ("RPDs") 4) production of documents (collectively "Discovery Requests") and 5) impose sanctions on Defendants.

For the reasons set forth below, Plaintiff's motions are GRANTED IN PART AND DENIED IN PART.

I. Factual and Procedural Background

A. Background Facts

The Decedent passed away on or around April 12, 2023. At the time of her death, Decedent was married to Richard Mendez ("Defendant"). As part of Decedent's estate plan, she executed a Last Will and Testament and Advanced Care Directive which referenced Defendant as the executor of her will, as well as details on how she wanted her remains disposed of, her obituary, the services in her memory, and her desire to be buried. (See, Complaint, Ex. 1, hereinafter referred to as "End of Life Plan").

Plaintiff is apparently one of the Decedent's children. On or about April 10, 2023, Plaintiff contacted Defendant to discuss the services and Decedent's wishes. According to Plaintiff, Defendant informed her that "he did not wish to discuss funeral services" and that he was "aware of her will." (Complaint ¶ 8.) After again unsuccessfully attempting to contact Defendant about funeral plans and body disposal, Plaintiff and her siblings moved forward on their own to plan the funeral services, incurring costs of approximately \$36,726.40.

Defendant failed to attend the memorial service and to provide reimbursement for the costs. Plaintiffs allege that Defendant also failed to lodge the Decedent's Will with Calaveras County Clerk as required by Cal Probate Code section 8200. The Complaint alleges causes of action for: 1) breach of fiduciary duty, 2) Violation of Probate code § 8200, and 3) seeks removal of executor for fraud under Probate Code §8502.